

DEPARTMENT OF THE NAVY
NAVSUP WSS
5450 Carlisle Pike | PO Box 2020 | Mechanicsburg, PA 17055-0788

Sole Source Justification for Commercial Items using FAR 13.5

1. Contracting Activity

Contracting Activity		NAVSUP WSS - Mechanicsburg			Type	Sole Commercial	
Folder #		240960016			PD #	n0010424x4009	
Item Manager		Work Function	Planner	Phone		Code	
Technician		Work Function	Reprocurement Technician	Phone		Code	
Buyer		Work Function	Contract Specialist	Phone		Code	

2. Description of the Action Being Approved

Description	Negotiation and award of a contract through other than full and open competition.
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3. Description of Supplies/Services

Nomenclature	HYDRO-LIGHT TEST KI				Quantity	
NSN	6640-01-642-9285				Cage Code	
P/N	JF-WA1-N				Unit Price	
Required Delivery Date		Option	Yes	Option %	50	Days 208
Estimated Value						
Ship To						
Period of Performance: Expected Final Delivery Date						
Line of Accounting						

List of Items/Item Description	Hydro-Light Test Kit, 01-642-9285, P/N JF-WA1-N. LED SOURCE AMPLIFIED PHOTODIODE RECEIVER, MICROPROCESSOR CONTROLLED; READOUT: CALIBRATION STATUS AND PPM PAD READING
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4. Statutory Authority Permitting Other Than Full & Open Competition

This justification is based upon the statutory authority of 41 U.S.C. 1901, as implemented by Federal Acquisition Regulation Subpart 13.5

5. Rationale Justifying Use of Cited Authority

A/RMC 3

Acquire, for the second or subsequent time, directly from the actual manufacturer.

A/RMSC Z

This part is a commercial/nondevelopmental/off-the-shelf item. Commercial item descriptions, commercial vendor catalog or price lists or commercial manuals assigned a technical manual number apply. If one source is available, A/RMCs 3, 4, or 5 are valid. If at least two sources are available, A/RMCs 1 or 2 are valid.

This acquisition will be negotiated with

D 2 INCORPORATED - (4EKX8). Based on the market research performed by the technical advocate, it is concluded that the only source of procurement is D 2 INCORPORATED - (4EKX8) because they are currently the only source capable of satisfying this requirement. D 2 INCORPORATED - (4EKX8) is the only known source that has/owns the data, and it has been deemed uneconomical to pursue the acquisition of the data because the data and its content are not available. There are no authorized substitutes of this item as this is the only item known to meet performance and compatibility requirements within the higher assembly. Furthermore, there is no data to support an open and full competition. The item has to be tested within the upper assembly and qualify within approved testing specifications procedures, embedded coding procedures, design protocols, and internal QA requirements. NAVSUP-WSS must procure the item from D 2 INCORPORATED - (4EKX8).

6. Description of Efforts Made To Solicit Offers From as Many Offerors as Practicable

The proposed contract action was synopsisized in the government-wide point of entry on 01/08/2025

The following sources have expressed an interest, in writing, in this acquisition

7. Determination of Fair And Reasonable Cost

The contracting officer determines that the anticipated cost to the Government of the supplies covered by this J&A will be fair and reasonable.

8. Actions to Remove Barriers to Future Competition

To promote competition, NAVSUP WSS will continue to encourage vendors with the expertise to manufacture/repair the subject item to submit a complete technical data package for review and source approval by the appropriate engineering source approval authority per the (WSS) guidelines. Also, future requirements will be advertised on the government-wide point of entry. For reasons set forth in Paragraph (5 & 6), NAVSUP WSS has no plans at this time to compete future contracts for the subject item covered by this document. If another potential manufacturing source emerges, NAVSUP WSS will assess whether competition for future requirements is feasible. Also, future requirements will be advertised on the government-wide point of entry.

History

Created By		Work Function	Reprocurement	Created Date	
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I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

**Requirements
Cognizance
Signature**

Work Function

Planner

**Requirements
Cognizance
Signature Date**

I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

**Technical
Cognizance
Signature**

Work Function

Reprocurement
Technician

**Technical
Cognizance
Signature Date**

As of this date, I confirm KO has reviewed the information contained in this J&A and determined sufficient for purposes of processing/ completing Small Business Coordination Record DD2579

**KO Review for
Small Business
Concurrence**

Work Function

Contract Specialist

**KO Review for
Small Business
Concurrence Date**

I certify that this J&A is accurate and complete to the best of my knowledge and belief

**Contracting Officer Certification
Signature**

Work Function

Contract Specialist

**Contracting Officer Certification
Signature Date**

I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

**Competition
Advocacy Review
And Concurrence
Signature**

Work Function

Competition
Advocate

**Competition
Advocacy Review
And Concurrence
Signature Date**

I certify that this J&A is legally sufficient to the best of my knowledge and belief

**Legal Sufficiency
Review Signature**

Work Function

Attorney

**Legal Sufficiency
Review Signature
Date**

I certify that this J&A is accurate and complete to the best of my knowledge and belief

**Approval Required
By Far 6.304
Signature**

Work Function

Competition
Advocate

**Approval Required
By Far 6.304
Signature Date**